Harris County District Court

Cause No. 2025-CV-0004

Thomas Anderson, Plaintiff, v. Harbor Point Mutual Auto Insurance, Defendant

Defendant's Original Answer

Date:	8-13-25
Counsel for defendant:	Stephanie Williams, Ashford & Lyle LLP

Defendant denies each and every allegation contained in Plaintiff's Original Petition, and demands strict proof thereof as required by the Texas Rules of Civil Procedure. Pursuant to Rule 92, Defendant generally denies the allegations and requests that Plaintiff be required to prove the charges and allegations against Defendant by a preponderance of the evidence.

For further answer, and without assuming any burden of proof that the law places on Plaintiff, Defendant asserts the following affirmative defenses.

First, Plaintiff's own negligence proximately caused or contributed to the occurrence in question. Plaintiff failed to keep a proper lookout, failed to yield the right of way within the parking facility, and failed to exercise ordinary care under the circumstances. Under Chapter 33 of the Texas Civil Practice and Remedies Code, any recovery must be reduced in proportion to Plaintiff's percentage of responsibility, and Plaintiff may be barred if that percentage exceeds fifty percent.

Second, the injuries and damages claimed were caused, in whole or in part, by a pre-existing condition, a subsequent event, or an unrelated incident for which Defendant bears no responsibility.

Third, Plaintiff failed to mitigate damages by failing to follow reasonable medical advice and by failing to pursue reasonably available treatment, and any recovery must be redcued accordingly.